

HOUSE No. 4797

The Commonwealth of Massachusetts

PRESENTED BY:

Danielle W. Gregoire

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act validating a conveyance of land and authorizing the recording of a confirmatory deed in the city of Marlborough.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Danielle W. Gregoire</i>	<i>4th Middlesex</i>	<i>10/23/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>1/8/2026</i>

HOUSE No. 4797

By Representative Gregoire of Marlborough, a petition (subject to Joint Rule 12) of Danielle W. Gregoire relative to the recording of a confirmatory deed by the Commonwealth of a certain parcel of land in the city of Marlborough to Louis G. Monti, Jr., of said city. State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act validating a conveyance of land and authorizing the recording of a confirmatory deed in the city of Marlborough.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to authorize forthwith the recording of a confirmatory deed by the commonwealth of a certain parcel of land in the city of Marlborough, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (b) of section 1 of chapter 170 of the acts of 2024 is hereby
2 amended by adding the following 2 sentences:- Said property is bounded and described as
3 follows:

4 Beginning at a stone bound set at the northeasterly corner of the granted premises and in
5 the boundary line between land of the grantee and land now or formerly of Lincoln H. and Ruth
6 I. Breault, as shown on the plan hereinafter mentioned

7 THENCE the line runs south 4° 25' west by said land of the grantee one hundred eleven
8 (111) feet to a stone bound at land of the Commonwealth of Massachusetts;

9 THENCE north 5° 35' west by said land of the Commonwealth of Massachusetts one
10 hundred four (104) feet to a point at land now or formerly of Lincoln H. and Ruth I Breault;

11 THENCE northeasterly by a line curving to the right with a radius of four hundred thirty-
12 five (435) feet by said land of Lincoln H. and Ruth I. Breault twenty (20) feet to the point of
13 beginning.

14 Containing 1,000 square feet, more or less and being shown on a plan entitled
15 “Commonwealth of Massachusetts, Metropolitan District Commission, Water Division, Land in
16 Marlboro to be conveyed to Pierina Monti,***February 1958, Harold J. Toole, Director of Water
17 Division and Chief Water Supply Engineer,” to be recorded herewith.

18 SECTION 2. Said chapter 170 is hereby further amended by adding the following 3
19 sections:-

20 SECTION 3. Notwithstanding the absence of a recorded deed or any defect in execution
21 or delivery, the conveyance of the parcel of land described in section 1 from the commonwealth
22 to Pierina Monti dated May 22, 1958, is hereby validated, confirmed and ratified and shall be
23 deemed to have been validly made and effective as of May 22, 1958. Said conveyance shall have
24 the same force and effect as if a deed had been properly executed, delivered and recorded at the
25 time of the original transaction, notwithstanding any defects, irregularities or omissions in the
26 original conveyance or the failure to record the same.

27 SECTION 4. The Middlesex southern district registry of deeds is hereby authorized and
28 directed to accept for recording the confirmatory deed authorized in section 1, together with any
29 supporting documentation relating to the May 22, 1958 conveyance including a copy of the deed
30 dated May 22, 1958 intending to convey the parcel of land described in subsection (b) of section

1 herein kept by the division of capital asset management and maintenance in its official records and in ordinary course certified by an official from said division as being a true and correct copy of said May 22, 1958 deed, notwithstanding any requirement of law, rule or regulation that would otherwise prevent such recording. Any such supporting documentation shall be attached to an affidavit conforming to the requirements of section 5B of chapter 183 of the General Laws. Upon recording the confirmatory deed and supporting documentation, said confirmatory deed shall be deemed to relate back to and shall be effective as of May 22, 1958, and shall serve as conclusive evidence of the commonwealth's conveyance of said parcel to Pierina Monti and her heirs, successors and assigns.

SECTION 5. Upon the recording of the confirmatory deed authorized herein, the title to said parcel shall be deemed to have been vested in Pierina Monti as of May 22, 1958, and to have passed through any successive conveyances to the current owner of record, free and clear of any claims by the commonwealth arising from the absence of a recorded deed for the 1958 conveyance. This act shall be conclusive evidence of the validity of said conveyance and shall cure any defects in the chain of title arising from the failure to record the original 1958 conveyance.